



Appeal Decision

Site visit made on 12 June 2026

by F Cullen BA(Hons) MSc DipTP MRTPI IHBC

an Inspector appointed by the Secretary of State

Decision date: 14th September 2026

Appeal Ref: 6006422

North Burton Hall, Hunmanby Road, Burton Fleming, East Riding of Yorkshire YO25 3PT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Edward Lindley, of Robert Lindley Limited, against the decision of East Riding of Yorkshire Council.
 - The application Ref is 25/01754/PLF.
 - The development is installation of a biomass boiler and flue.
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Decision

1. The appeal is allowed and planning permission is granted for installation of a biomass boiler and flue at North Burton Hall, Hunmanby Road, Burton Fleming, East Riding of Yorkshire YO25 3PT, in accordance with the terms of the application, Ref: 25/01754/PLF, and the plans submitted with it, subject to the following conditions:
 - 1) The development hereby permitted shall be carried out in accordance with drawing nos IP/25/RLL/01 Location Plan; IP/25/RLL/02 Site Plan; and IP/25/RLL/03 Elevations A1.
 - 2) The matt black colour of the flue which forms part of the development hereby permitted shall be maintained for its lifetime.
 - 3) The development hereby permitted shall be operated and maintained in accordance with the manufacturer's instructions. The only fuel to be burned in the appliance shall be straw.

Application for Costs

2. An application for costs was made by Mr Edward Lindley, of Robert Lindley Limited against East Riding of Yorkshire Council. This application is the subject of a separate Decision.

Preliminary Matters

3. The application form confirms that the development which is the subject of the appeal has 'been completed'. I have therefore determined the appeal on a retrospective basis, having regard to the plans submitted with the application.
4. The biomass boiler is housed within an outbuilding with the flue projecting upwards from it. The outbuilding forms part of a range of buildings attached to the rear of North Burton Hall, a Grade II listed building¹ (the Hall). It is common ground

¹ National Heritage List for England, List Entry Number: 1162205.

between the main parties that whilst the outbuilding which houses the boiler and flue is not listed in its own right, by virtue of section 1(5) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) (the Act), it 'shall be treated as part of the (listed) building' and is subject to listed building controls. The appeal before me relates to the refusal of planning permission. I have therefore exercised the relevant statutory duty set out in section 66(1) of the Act.

5. The second reason for refusal in the Decision Notice relates to heritage matters. Both the Grade II listed Hall and the Grade II* listed Church of St Cuthbert² (the Church) are referenced. However, the stated harm refers only to 'the Listed Building' (singular). This discrepancy is not clarified in the Council's Statement. Nonetheless, the appellant has addressed any perceived effects of the development on the significance of the Church in their evidence, and I note Historic England was consulted on the application³. Therefore, I am satisfied that no party would be prejudiced by my including the Grade II* listed Church in my assessment.
6. A revised version of the National Planning Policy Framework was published on 17 August 2026 (the Framework). The updated Framework includes policy changes which are relevant to the main issues of this appeal. In the interests of fairness, the main parties were given the opportunity to comment on the Framework in relation to their respective cases. In determining the appeal, I have had regard to the Framework and the comments submitted by the parties.

Main Issues

7. The main issues are the effect of the development on: i) the living conditions of local residents, with regard to emissions; and ii) the settings and significance of the listed buildings of North Burton Hall and the Church of St Cuthbert, as well as the character and appearance of the area.

Reasons

8. The appeal site (the site) forms part of an existing farming enterprise situated outside the defined development limits of Burton Fleming, although still within its residential context. The evidence states that a biomass boiler has been housed within the outbuilding since 1990, and that the current 'Glen Farrow' biomass boiler system was installed in 2014. The appliance provides space and water heating for the Hall and associated buildings.

Living conditions of local residents, with regard to emissions

9. The biomass boiler and flue are located within an established farmyard, in proximity to residential dwellings, to the north, south and west. The biomass boiler was not in use at the time of my site visit and no smoke was being emitted from the flue.
10. The Council has not provided or referenced any specific data or information relating to the alleged level or composition (current or potential) of emissions from the development. In assessing this issue, I have given careful consideration to the significant number of representations submitted by interested persons at both the application and appeal stages⁴, and do not underestimate the strength of local feeling on this matter.

² National Heritage List for England, List Entry Number: 1083394.

³ With a response dated 10 July 2025 stating, 'In this case we are not offering advice'.

⁴ Both individual and collective, including images of emissions and Temtop PM2.5 Monitor readings, and complaint sheets / logs.

11. I acknowledge that some of the images submitted show smoke, of varying levels, being emitted from the flue. However, no corroborative evidence has been provided to demonstrate either that the emissions were not being adequately dispersed by the flue or that they were of an adverse level that resulted in harmful effects at those points in time.
12. In addition, I note the images which illustrate the presence of smoke in the atmosphere around the site, the images which show measurements taken by residents using a Temtop PM2.5 Monitor indicating dangerous levels of particulate matter, and the complaint sheets / logs completed by residents. I also recognise the health hazards and risks which PM2.5 can potentially give rise to as set out in the submitted representations.
13. However, this information, particularly the particulate matter measurements, is not sufficiently detailed and does not allow for a robust assessment. There is an absence of: verifiable baseline data; details of the environmental conditions and circumstances at the time the images and PM2.5 readings were taken; and regular objective monitoring over an appropriate period of time, preferably by an independent professional.
14. I am also aware of the other local sources of smoke cited in the Council's evidence, including another biomass boiler (albeit stated not to be in use at the date of the consultee comment⁵) and the presence of solid fuel burners in homes within Burton Fleming. Indeed, during my site visit, I observed a tall, slim, flue projecting from the roof of a dwelling adjacent to the site.
15. I have had regard to the requirements of the Framework set out in Policy P3(2c) concerning PM2.5. However, the matters identified above considerably limit the validity and reliability of the data which has been provided and thus the accuracy of any analysis and evidential conclusions that can be reasonably drawn from it.
16. I recognise that legislation allows the Council to take action only where smoke emissions are unreasonable, have a detrimental effect on the quality of life of those in the locality, are persistent or continuing in nature, or amount to a statutory nuisance. Furthermore, technical compliance with environmental permitting or nuisance legislation does not automatically equate to an absence of harm in planning and amenity terms.
17. Nevertheless, it remains material that, after undertaking what is described as 'thorough enquiries' in response to local complaints, the Council's Environmental Control Team (ECT) raised no objection to the development, subject to a condition controlling the fuel burned. Also, the development was deemed compliant by the Environment Agency in March 2025, and confirmed by the manufacturer to be operating appropriately, neither of which the Council disputes. Moreover, there is no clear evidence which indicates that any other relevant regulatory regime will not operate effectively in relation to the site and development in the future.
18. Even in undertaking a broader planning judgement and having regard to the concepts of reasonable likelihood and the precautionary principle, there is a deficiency of verifiable and compelling evidence which substantiates the Council's concerns in respect of emissions and effects on the living conditions of neighbours. Also, no evidence has been submitted regarding any existing agricultural and

⁵ Consultee comments by the Council's Environmental Control Team dated 5 November 2025.

industrial activities at the site which would allow an assessment of any existing or potential cumulative effects.

19. In any event, even if the Council's concerns had been substantiated, having regard to Policy DM3(1e) of the Framework, I am satisfied that a condition restricting the fuel burned within the appliance to straw, as recommended by ECT, would adequately mitigate any existing or potential adverse effects. Moreover, I have no reason to question the enforceability of such a condition and find that it would satisfy the six tests set out in the Framework and the Planning Practice Guidance (the PPG).
20. Accordingly, subject to the imposition of a condition controlling the fuel burned within the biomass boiler, I am satisfied that the development does not, or would not, result in unacceptable impacts on the living conditions of local residents, with regard to emissions. On this basis there is no conflict with Policies ENV1 and ENV6 of the East Riding Local Plan Update 2020-2039, April 2025 (the Local Plan). Together and amongst other things, these policies require that development does not have an unacceptable impact on existing uses in the surrounding area; and that environmental hazards are managed. There is also no conflict with the provisions within the Framework which seek to ensure that development is appropriate for its location, taking into account risks posed by pollution and other hazards and that any potential impacts are taken into account.

Heritage assets and character and appearance

Special interest and significance

21. The outbuilding in which the biomass boiler is located and from which the flue projects is constructed of brick with a pantile roof. It forms part of a range of buildings attached to the rear of the Grade II listed Hall, and so is treated as 'part of' the listed building. The main body of the Hall is a substantial two-storey, seven bay building in an L-shaped plan which dates from the early 19th century. It is rendered with stone dressings, brick chimney stacks and has a hipped slate roof.
22. From the evidence before me, the special interest and significance of the listed building mainly stem from the architectural and historic interests of the main body of the Hall, in exemplifying a polite early 19th century farmhouse. The adjoining brick and pantile outbuildings are subordinate to the main body of the Hall in size, form and function. Whilst they denote the asset's evolution, their contribution to the asset's special interest and significance is negligible.
23. Pertinent to the appeal, special interest and significance are also derived, in part, from the asset's setting. Its immediate surroundings have direct physical, visual, functional and historic links with the asset. These comprise its demarcated domestic garden spaces and more open farmyard context, the latter encompassing adjoining and adjacent outbuildings and barns, including that which houses the development. These are the main spaces from which the Hall is experienced and its heritage merit appreciated. The Hall's immediate setting therefore makes a meaningful contribution to its significance.
24. Beyond these spaces, the Hall's prominent position within Burton Fleming, its associations with the Village, and the related and expansive agrarian context within which it sits, mean that its wider setting also contributes to its significance.

25. The Grade II* listed Church and surrounding graveyard occupy a prominent position on a triangular piece of land at the north of the Village, opposite the Hall. The building dates from the 12th century with later additions and alterations and is constructed of ashlar stone, brick, and cobbles with a plain tiled roof.
26. From the evidence before me, the special interest and significance of the Church mainly stem from its archaeological, architectural and historic interests in illustrating a 12th century church which has evolved over time.
27. Relevant to the appeal, special interest and significance also stem, in part, from the asset's setting. Its immediate setting, comprising its enclosed graveyard, has direct physical, visual, functional and historic links with the asset. This contemplative space allows the Church and its role and status within the Village to be experienced and contributes considerably to both its significance as an asset, as well as the ability to appreciate that significance.
28. Beyond this are the routes, buildings and spaces which make up Burton Fleming, including the appeal site, and its open countryside surroundings. This wider context of the Church permits an understanding of its historic relationship with the Village, and its enduring functional and communal importance. In this way, the Church's wider setting positively contributes to its special interest and significance and reinforces its high status as a Grade II* listed building.

Effects

29. Policy HE5(2) of the Framework confirms that assessments of the potential effects of development proposals on the significance of heritage assets should identify whether they would be likely to: a. Have a positive effect; or b. Have no effect; or c. Result in harm (which includes substantial harm), the degree of which should be identified; or d. Cause the total loss of significance.
30. The Council does not object to the physical installation of the 'free standing' and 'screened' biomass boiler within the utilitarian outbuilding. In addition, there is no substantive evidence before me which indicates that the biomass boiler poses a fire risk to the outbuilding or the main body of the Hall. Consequently, I have no reason to take a different view to that of the Council and find that, in this respect, the development preserves the special interest of the listed building and has no effect on its significance.
31. The Council's objections on heritage and general character and appearance grounds relate to effects of the associated flue. The flue is stated to be approximately 10m with about 4m extending above the ridge of the outbuilding's roof.
32. The position of the flue is separated from the main body of the Hall which results in it being mostly read in the context of the surrounding farmyard and its associated agrarian infrastructure. The flue's fairly slim form, combined with its painted matt black colour (albeit slightly deteriorated at the time of my site visit) and partial screening by mature trees, also moderate its prominence in views from both within and outside the farmyard to some degree.
33. Moreover, whilst I noted some smoke stains on the outbuilding, I could not see any on the main body of the Hall, and there was no visual evidence to suggest that this effect of the biomass boiler and flue is detrimental to the fabric of the listed building.

34. Nonetheless, the flue's form and substantial projection above both the ridge line of the outbuilding and the roofline of the main body of the Hall, cause it to be an overtly modern and highly prominent feature, visible in conjunction with the main body of the Hall from a number of viewpoints within and outside the farmyard.
35. As a result, it disrupts the established relationship and hierarchy between the main body of the Hall and the outbuilding, detracts from the appreciation of the asset's heritage merit, and weakens the authenticity of that experience. These harmful effects are highly conspicuous and readily perceived from the adjacent public highway when passing the entrance to the farmyard and, in this respect, have a limited adverse effect on the character and appearance of the area.
36. I acknowledge that there are other tall and functional agrarian and industrial elements present within the farmyard. However, none of these are read in such close combination with the main body of the Hall.
37. The flue, of itself, does not affect the heritage interests of the Hall which make the greatest contribution to its special interest and significance. I am also mindful of the explanation given by the appellant for the height of the flue, concerning compliance with the Environment Agency's mandatory requirements. Even so, for the reasons given above, the development does not preserve the setting of the Hall and harms the asset's significance, albeit with what could reasonably be concluded as clear and convincing justification.
38. In relation to the Church, there is clear physical separation and very limited intervisibility between the site / flue and this asset, which means that the two are not read together. Although a modern, prominent feature, this change within the wider setting of the Church does not disrupt the ability to appreciate the Church's role and status or its historic relationship with the Village and the surrounding landscape, nor undermine the authenticity of this experience.
39. I am aware of the guidance in the PPG which confirms that effects of development on the setting and significance of heritage assets are not limited to visual and physical considerations, but are also influenced by other environmental factors such as noise, dust, smell and vibration from other land uses in the vicinity. In this regard, I note the representations made by local residents concerning the emissions from the biomass boiler and the fabric and use of the Church.
40. However, I saw no evidence when on site that any emissions from the biomass boiler and flue have affected, or are affecting, the historic fabric of the Church. Moreover, no substantive evidence has been presented to demonstrate that any emissions are of such an adverse level and composition that they affect the Church's function within the Village. In any event, I am content that any alleged adverse effects in this respect can be adequately mitigated by the imposition of a condition controlling the type of fuel burned at the site. Consequently, for the reasons given above, I find that the development preserves the setting of the Church and does not harm the asset's significance.
41. Accordingly, for the purposes of Section 66(1) of the Act, the development fails to preserve the setting of the Grade II listed Hall. As such, there is harm to the asset's significance. There is also limited associated harm to the character and appearance of the area. The development conflicts with Policies ENV1 and ENV3 of the Local Plan insofar as they seek development to safeguard and respect the diverse character and appearance of the area; and conserve or enhance the

significance of heritage assets and their settings. It also does not accord with the provisions within the Framework which seek to conserve and enhance the historic environment.

42. In finding harm to the significance of a heritage asset, Policy HE5(2c) of the Framework requires the degree of harm to be identified. In making this assessment I recognise that it is the effect on the asset's significance rather than the scale of the development which should be considered. Given the nature of the change, I find that the scheme results in a very low level of harm to the significance of the Hall. I am satisfied this assessment accurately reflects the effects on the heritage asset caused by the proposal.
43. Nevertheless, in accordance with Policies HE6(1) and (3) of the Framework, I give substantial weight to the asset's conservation, and considerable importance and weight to the identified harm.
44. Policy ENV3(B) of the Local Plan and Policy HE6(4) of the Framework require the effect on the heritage asset and its significance to be weighed against any public benefits resulting from the proposal. I return to this in the overall balance below.

Other Matters

45. The Council submits that the development fails to satisfy the objectives of Policy HC4 of the Framework. However, this policy concerns proposals for new and improved community facilities, public service infrastructure and development providing public health benefits. Given the nature of the development, I find that this policy is not determinative in this instance.
46. Representations submitted by interested persons which have not been considered under the main issues are addressed below.
47. Other legislation and regulatory regimes have been cited. Policy DM7(1) of the Framework advises that 'Development proposals should be assessed on the basis of whether they would be an acceptable use of land. Matters which are controlled by separate regulatory regimes may, in the context of a particular development proposal, be a material consideration where they have land-use implications. Decision-makers should assume, unless there is clear evidence to the contrary, that those separate regimes will operate effectively.' No compelling evidence has been presented that any other relevant regulatory regime will not operate effectively in relation to the site and development.
48. Neither the Council nor any other regulatory body has raised concerns regarding harmful effects arising from the development in respect of flood risk and drainage, biodiversity, climate change, or fire safety and waste management at the site; and there is no substantive evidence before me that would lead me to conclude otherwise.
49. Reference has been made to the potential health impacts of the development on vulnerable members of the local community such as the young, elderly or those with chronic health conditions. Whilst the particular circumstances of any individual resident are not expanded upon in detail, I have nonetheless, had due regard to those representations.
50. The evidence before me does not demonstrate that the development gives rise, or has the potential to give rise, to harmful effects on the living conditions of local

residents, with regard to emissions. In any event, even if such harm had been demonstrated, I am satisfied that it could be adequately mitigated by the imposition of a condition controlling the type of fuel burned at the site. Consequently, the development does not conflict with the relevant policies of the Local Plan and the relevant provisions within the Framework. In these circumstances, it is proportionate to allow the appeal.

51. In terms of precedent, it is not my role to appraise the retrospective nature of the application or appeal. Rather, I am required to assess the development on its planning merits, having regard to the evidence before me and any material considerations. Additionally, my findings are specific to this development and its circumstances. Each application and appeal must be determined on its individual planning merits and a generalised concern regarding precedent does not justify withholding planning permission in this case.
52. My attention has been drawn to an application for planning permission for a biomass and waste wood processing building which was refused by the Council⁶. No decision notice or officer report have been submitted with the representations. From the limited information presented, the application was refused on the grounds of 'unjustified scale and harmful visual impact', and subsequent conflict with the Local Plan and the Framework. There is no indication that concerns relating to the living conditions of local residents or impact on designated heritage assets formed part of the reasons for refusal. Consequently, the proposal does not appear directly comparable to the development before me, and attracts little weight in the determination of the appeal.
53. I find that these other matters, individually or collectively, do not alter my conclusions on the main issues.

Conditions

54. The Council has submitted suggested conditions in the event that the appeal is allowed. I have considered these having regard to the advice set out in both the Framework⁷ and the PPG⁸.
55. As the development is retrospective, a condition specifying the standard time limit is not necessary. I have imposed a condition specifying the relevant plans as this provides certainty. In the interests of the significance of North Burton Hall and the general character and appearance of the area, a condition regarding the finish of the flue, is necessary. In the interests of the living conditions of neighbours with regard to emissions, a condition requiring the development to be operated and maintained in accordance with the manufacturer's instructions and that the only fuel to be burned in the appliance should be straw, is necessary.

Overall Balance

56. Policy ENV3(B) of the Local Plan and Policy HE6(4) of the Framework require the identified harm to the heritage asset and its significance to be weighed against any public benefits resulting from the proposal.

⁶ Application Ref: 21/04544/STPLFE.

⁷ Policy DM6: Use of planning conditions and obligations.

⁸ PPG Paragraphs: 007 Reference ID: 21a-007-20180615; and 017 Reference ID: 21a-017-20190723.

57. Policy S3(1) of the Framework requires decisions on development proposals to apply a presumption in favour of sustainable development. As the site is located outside the settlement of Burton Fleming, Policy S5 is relevant. This advises that, only certain forms of development should be approved outside settlements. The list includes development for agriculture or infrastructure (including energy) which the development could reasonably be described as. The Policy goes on to state that these forms of development should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
58. The development is a long-term, low-carbon, renewable heating system which provides space and water heating for the Grade II listed Hall and associated buildings. Linked outcomes are reduced reliance on fossil fuels, and contribution to climate change mitigation and the transition to net zero.
59. Policy HE6(4) of the Framework confirms that enabling energy efficiency and low carbon heating measures to be employed is an 'important public benefit' in heritage terms. In addition, Policy CC2(2) requires substantial weight to be given to the benefits of improving the energy efficiency of existing buildings and / or drawing energy from renewable and low carbon sources. Similarly, Policy W3(1a) requires substantial weight to be given to the benefits of the transition to a net zero future as a result of renewable and low carbon energy development.
60. The appellant has also referenced Policies E2(1b) and E4 of the Framework, but they have not demonstrated how the development supports business growth / development.
61. Against this, I have identified a very low level of harm to the significance of the Hall and limited associated harm to the character and appearance of the area. Whilst I attach substantial weight to the asset's conservation and considerable importance and weight to the harm, in this instance, I find that this is outweighed by the weight I attach to the public benefits arising from the development. Although the proposal therefore satisfies the heritage balance required by the Local Plan and the Framework, the identified heritage harm remains a matter weighed in the overall planning balance below.
62. Turning to the overall planning balance under Policy S5, the development delivers meaningful benefits as a source of renewable low carbon, energy. Whilst I have identified adverse effects on both the significance of the Hall and the character and appearance of the area, I find that those effects do not substantially outweigh the benefits, when assessed against the national decision-making policies in the Framework.

Conclusion

63. The development conflicts with the development plan, but material considerations indicate that a decision should be made other than in accordance with it. Therefore, for the reasons given and subject to conditions, I conclude that the appeal should be allowed.

F Cullen

INSPECTOR